2019 WL 8356023 (Utah App.) (Appellate Brief)
Court of Appeals of Utah.

LD III, LLC, a Utah limited liability company, Petitioner/Appellant,

v.

MAPLETON CITY, Respondent/Appellee.

No. 20190090-CA.
June 19, 2019.

District Court Civil No. 170401683
Appeal from the Final Judgment of the Fourth District Court, Utah County, Provo Division, The Honorable James R. Taylor
* Oral Argument Requested

Appellant's Corrected Opening Brief on Appeal

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PRIORITY NO.: 15

ii** ***APPELLANT'S BRIEF

Appellant, LD III, LLC submits this brief in the appeal before this Court.

LIST OF ALL PARTIES TO THE PROCEEDING BELOW

The Petitioner-Appellant:
LD III, LLC, a Utah limited liability company.

The Respondent-Appellee:
Mapleton City.

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1** ***INTRODUCTION

This is an appeal from summary judgment. It involves designation by Mapleton City ("Mapleton") of real property ("Property") belonging to LD III ("LDIII") located in Mapleton, Utah as a Transferable Development Rights Receiving (TDR-R) site. That designation allows a property owner to use Transferable Development Rights ("TDRs") to increase density above what is otherwise allowable under a property's base zoning designation. TDRs are available for several base zones, including both zoning designations (A-2 and PRC-4) LDIII's property received.

The Property was designated a TDR-R site in 2003. Mapleton refuses to recognize its TDR-R status. The Development Agreement with Mapleton ("Development Agreement") agrees it is a TDR-Receiving site that may be developed into 136 building lots. It also states the TDR-R designation and right for 136 building lots run with the land. Mapleton received 76 acres as consideration for the Property's TDR-R designation and the vested right to 136 building lots for the Property. Mapleton kept those 76 acres. The Mapleton City Council ("City Council") explicitly recognized it approved the density and TDR-R overlay zoning status in exchange for the 76 acres.

The trial court disregarded Development Agreement language stating it runs with the land. It decided Mapleton removed the TDR-R overlay zoning status in 2006 when it changed the Property's base zoning from A-2 to PRC-4. There is no evidence the Property's TDR-R overlay zoning was removed. There is no evidence Mapleton gave public notice of an intent to remove the TDR-R overlay zoning status. There is no evidence Mapleton's ***2** repeal of the Property's TDR-R overlay zoning was discussed in any City Council meeting. There is no evidence the City Council addressed repealing the Property's TDR-R overlay zoning in any ordinance or resolution.

In granting summary judgment to Mapleton, the trial court weighed evidence, ignored facts favorable to LDIII, made inferences in Mapleton's favor and misconstrued and misapplied statutes and ordinances. Therefore, this Court should reverse the trial court's summary judgment.

STATEMENT OF THE ISSUES

A. Whether the trial court improperly weighed evidence and made inferences in favor of Mapleton and against LDIII when granting summary judgment to Mapleton?

Standard of Review: "We review a summary judgment determination for correctness, granting no deference to the district court's legal conclusions. *Salt Lake County v. Holiday Water Co.*, 2010 UT 45, ¶ 45, 234 P.3d 1105 (citations omitted). We determine only whether the district court erred in applying the governing law and whether the district court correctly held that there were no disputed issues of material fact." *Id.* (citations omitted).

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Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, Rec. 967-980; Ruling on Motion to Alter or Amend Judgment; R.983-986.

***3** B. Whether the trial court erred in concluding as a matter of law LDIII was time barred from asserting the Property's vested development rights?

Standard of Review: "The application of a statute of limitations is a question of law. Statutory interpretation is also a question of law. We review conclusions of law for correctness, granting the [the lower court] no deference." *Arnold v. Grigsby*, 2009 UT 88, ¶ 7, 225 P.3d 192 (citations omitted).

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980; Ruling on Motion to Alter or Amend Judgment; R.983-986.

C. Whether the trial court erred in concluding as a matter of law Mapleton gave the required and legally sufficient notice before claiming to remove the Property's TDR-R overlay zone or revoke its TDR-R overlay zone, or was the lack of notice waived or legally excused?

Standard of Review: "Appellate review of a trial court's determination of the law is usually characterized by the term 'correctness.' Controlling Utah case law teaches that 'correctness' means the appellate court decides the matter for itself and does not defer in any degree to the trial judge's determination of law. This is because appellate courts have traditionally been seen as having the power and duty to say what the law is and to ensure that it is uniform throughout the jurisdiction." ***4** *State or Utah v. Pena*, 869 P.2d 932, 926 (Utah 1994) (citations omitted). "Statutory interpretation is also a question of law. We review conclusions of law for correctness, granting the [the lower court] no deference." *Arnold v. Grigsby*, 2009 UT 88, ¶ 7, 225 P.3d 192 (citations omitted).

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980.

D. Whether the trial court erred in concluding as a matter of law Mapleton's zoning ordinances preclude the application of a TDR-R overlay zone to a PRC base zone?

Standard of Review: "[A]ppellate review of a trial court's determination of the law is usually characterized by the term 'correctness.' Controlling Utah case law teaches that 'correctness' means the appellate court decides the matter for itself and does not defer in any degree to the trial judge's determination of law. This is because appellate courts have traditionally been seen as having the power and duty to say what the law is and to ensure that it is uniform throughout the jurisdiction." *State or Utah v. Pena*, 869 P.2d 932, 926 (Utah 1994) (citations omitted). "Statutory interpretation is also a question of law. We review conclusions of law for correctness, granting the [the lower court] no deference." *Arnold v. Grigsby*, 2009 UT 88, ¶ 7, 225 P.3d 192 (citations omitted).

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or ***5** to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980.

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E. Whether the trial court erred in concluding LDIII did not succeed to all the previous owner's rights, title and interest in the Property, when it obtained legal and equitable title to the Property through foreclosure?

Standard of Review: "We review a summary judgment determination for correctness, granting no deference to the district court's legal conclusions. *Salt Lake County v. Holiday Water Co.*, 2010 UT 45, ¶ 45, 234 P.3d 1105 (citations omitted). "We determine only whether the district court erred in applying the governing law and whether the district court correctly held that there were no disputed issues of material fact." *Id.* (citations omitted.

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980; Ruling on Motion to Alter or Amend Judgment; R.983-986.

F. Whether the trial court erred in concluding the Development Agreement was unambiguous and its terms did not run with the land?

Standard of Review: "We review a district court's interpretation of a written contract for correctness, granting no deference to the court below." ***6** *Richardson v. Hart*, 2009 UT App 387, ¶ 6, 223 P.3d 484 (citations omitted). "[F]acial ambiguity with regard to the language of the contract … presents a question of law ...." *Daines v. Vincent*, 2008 UT 51, ¶ 25, 190 P.3d 1269.

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980; Ruling on Motion to Alter or Amend Judgment; R.983-986.

G. Whether disputed facts preclude summary judgment deciding LDIII did not succeed to all development rights, density and zoning established in the Development Agreement?

Standard of Review: "We review a summary judgment determination for correctness, granting no deference to the district court's legal conclusions. We determine only whether the district court erred in applying the governing law and whether the district court correctly held that there were no disputed issues of material fact." *Salt Lake County v. Holiday Water Co.*, 2010 UT 45, ¶ 45, 234 P.3d 1105 (citations omitted).

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980; Ruling on Motion to Alter or Amend Judgment; R.983-986.

***7** H. Whether the trial court erred in concluding as a matter of law Mapleton could change the Property's zoning through the general ordinance procedure, without complying with Utah Code zoning requirements?

Standard of Review: "Appellate review of a trial court's determination of the law is usually characterized by the term 'correctness.' Controlling Utah case law teaches that 'correctness' means the appellate court decides the matter for itself and does not defer in any degree to the trial judge's determination of law. This is because appellate courts have traditionally been seen as having the power and duty to say what the law is and to ensure that it is uniform throughout the jurisdiction." *State or Utah v. Pena*, 869 P.2d 932, 926 (Utah 1994) (citations omitted). "Statutory interpretation is also a question of law. We review conclusions of law for correctness, granting the [the lower court] no deference." *Arnold v. Grigsby*, 2009 UT 88, ¶ 7, 225 P.3d 192 (citations omitted).

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Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980.

I. Whether the City Council's decision approving the Property's development was an administrative act not subject to a referendum?

Standard of Review: "We review a summary judgment determination for correctness, granting no deference to the district court's legal conclusions. *Salt Lake County* ***8** *v. Holiday Water Co.*, 2010 UT 45, ¶ 45, 234 P.3d 1105 (citations omitted). "We determine only whether the district court erred in applying the governing law and whether the district court correctly held that there were no disputed issues of material fact." *Id.* (citations omitted.

Preservation for Review: See Ruling on Cross Motions for Summary Judgment, R.578-592; Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.604-677; Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7 and/or 59(e) for a New Trial and/or to Alter or Amend Judgment, R.967-980; Ruling on Motion to Alter or Amend Judgment; R.983-986.

STATEMENT OF THE CASE

Facts established in the District Court Record:

1. In 2003, Suburban Land Reserve, Inc. ("SLR") owned approximately 245.6 acres of real estate on Mapleton's east bench. R.2 and R.3.

2. On May 7, 2003, SLR entered into a Development Agreement with Mapleton. R.2, R.3 and R.38.

3. The Development Agreement gave approximately 76 of SLR's 245.6 acres ("Upper Open Space") to Mapleton. Those 76 acres were re-zoned CE-1 (TDR-S), meaning it was a TDR sending site. That zoning change was final and not subject to appeal. R.39.

***9** 4. Mapleton zoned the remaining approximately 170 acres A-2 (TDR-R), meaning it was a TDR receiving site and eligible for increased density, and entitled to use TDRs.[1] R.3, R.13, and R.39.

5. SLR agreed to convey to Mapleton the Upper Open Space property and "the density to be transferred shall be transferred on a 5:1 ratio." SLR and Mapleton agreed 15 units could have been built on the Upper Open Space property and therefore SLR would be entitled to have 75 density units transferred to the Property. R.40.

6. The Development Agreement states SLR "has a **vested** right" to develop a maximum of 136 single family residential units on the Property. R.41(emphasis added).

7. The Development Agreement states it is binding on the successors and assigns of SLR. R.45.

8. The Development Agreement states "public notice of this Agreement shall be recorded immediately **as a covenant running with the Property herein described** ...." R.47 (emphasis added).

9. In conjunction with the Development Agreement, the land was zoned A-2 (TDR-R). SLR transferred 76 acres to Mapleton by a Quit Claim Deed. In exchange, SLR received TDRs and the Property was zoned A-2 (TDR-R). That meant the Property was an A-2 zone and a TDR receiving site. R.4 and R.13.

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***10** 10. On December 14, 2005, SLR transferred the Property, along with water rights and TDRs, to Craig Thueson via a Special Warranty Deed. R.36.

11. The same day, Craig Thueson transferred the Property, water rights and TDRs to The Preserve at Mapleton Development Company, LLC ("The Preserve") via a Special Warranty Deed. R.67.

12. On December 21, 2005, the City Council approved the Development Agreement's assignment to The Preserve. R.14, R.14 and R.76.

13. At the City Council meeting, the minutes reflect the "Mayor briefly summarized the background history associated with the acquisition of the Suburban Land Reserve property located on the east side of Mapleton Canal." The Mayor stated that "under the provisions of the May 7, 2003 Development Agreement between Suburban Land Reserve and the City Council, Suburban Land Reserve received development approval for 134 properties plus 77 Transferable Development Rights in exchange for the dedication to the City of 77 acres of Land." R.76.

14. On May 17, 2006, the City Council approved a change of the base zoning from A-2 to PRC-4 formalized as Mapleton City Council Resolution No. 2006-15. Both of these zones allow TDR-R status. R.4, R.14, R.79-80 and R.84; MCC § 18.82.070.

15. On December 6, 2006, The Preserve executed a promissory note and a Deed of Trust in favor of LDIII encumbering the Property. R.86 and R.88.

16. LDIII foreclosed the Property through a Trustee's sale. A Trustee's Deed was executed and recorded on December 23, 2008, conveying the Property to LDIII. R.96.

***11** 17. A developer for LDIII approached Mapleton with a development plan for the Property. R.5 and R.14.

18. Mapleton informed the developer the Property was not a TDR-R overlay zone and the developer could not use TDRs on the Property without Mapleton again designating the Property as a TDR receiving site. R.5 and R.14.

19. In preparation for a City Council meeting regarding the application of the developer to designate the Property as a TDR receiving site, Mapleton staff prepared a report that stated "[t]he original zoning for the property was A-2, which required a minimum of two acres per lot. The adopted PRC zone did not change the allowed density, but it did allow for flexibility in lot sizes." R.105.

20. On June 7, 2017, the City Council approved the developer's request to designate the Property as a TDR receiving site. R.5, R.15 and R.512.

21. At the June 7, 2017 City Council meeting, Mapleton's City Attorney stated, "Plats A, B, and C were subject to a development agreement for 136 lots and if you continued the additional plats you have a total of 191 lots which is a higher density than what the current applicant is applying for." R.513.

22. Opponents of the Property's development filed for and obtained a Referendum on the City Council's action in approving the TDR-R overlay status for the Property. A "yes" vote supported the action of the City Council. The Referendum failed. R.6 and R.15.

23. Mapleton maps of the Property show the Property was designated A-2 (TDR-R) from 2003 until 2007. R.196.

***12** 24. The Mapleton City Ordinance for PRC zones specifically allows the use of TDRs to increase the density in PRC zone. R.200.

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25. The trial court held that "[a]n A-2 designation allowed for the use of TDRs to increase the density of development, whereas the PRC-4 designation would not." The trial court then referred to Mapleton City Code ("MCC") §18.82D.110. R.579.

26. MCC § 18.82D.110 does not mention TDRs and only addresses the base zoning for the Property as envisioned by the previous owners. MCC § 18.82D.110.

27. MCC § 18.82.070 specifically allows the use of TDRs in a PRC zone. MCC § 18.82.070.

Procedural History

LDIII filed a Complaint for a Declaratory Judgment on November 14, 2017. Mapleton filed an Answer on December 19, 2017. LDIII filed a Motion for Summary Judgment on February 26, 2018. Mapleton filed its Opposition to LDIII's Motion for Summary Judgment and its own Motion for Summary Judgment on March 16, 2018. LDIII filed its Memorandum Opposing Respondent's Motion for Summary Judgment and Reply Memorandum in Support of Petitioner's Motion for Summary Judgment on April 6, 2018. Mapleton then filed its Reply in Support of Mapleton's Motion for Summary Judgment on May 2, 2018. Oral argument on both motions for summary judgment was held on July 9, 2018. The trial court entered its Ruling on Cross Motions for Summary Judgment on August 1, 2018 and entered Judgment on August 16, 2018.

***13** LDIII filed a Motion Pursuant to Rules 59(a)(6), 59(a)(7) for a New Trial and/or to Alter or Amend Judgment on September 13, 2018. Mapleton filed its Opposition to LDIII's Rule 59 Motion for New Trial or Amended Judgment on October 4, 2018. LDIII filed its Reply Memorandum in Support of Motion Pursuant to Rules 59(a)(6), 59(a)(7) for a New Trial and/or to Alter or Amend Judgment on November 9, 2018. The trial court entered its Ruling on Motion to Alter or Amend Judgment on January 8, 2019, denying LDIII's motion.

Disposition in the Trial Court

The trial court denied LDIII's Motion for Summary Judgment and granted Mapleton's M otion for Summary Judgment. The District Court denied LDIII's M otion Pursuant to Rules 59(a)(6), 59(a)(7) for a New Trial and/or to Alter or Amend Judgment. The trial court's grant of summary judgment decided all issues in the case.

SUMMARY OF ARGUMENTS

This appeal is to correct the trial court's errors in making inferences and weighing evidence when deciding a motion for summary judgment. All facts and all reasonable inferences from those facts must be construed in favor of the non-moving party. The trial court erred in its interpretation of Utah zoning laws and of Mapleton City ordinances and failed to acknowledge the ambiguity in the Development Agreement.

The trial court's error arose from a failure to consider facts offered by the LDIII in opposition to Mapleton's motion for summary judgment. The trial court found the City Council voted to remove the Property's TDR-R overlay zoning. However, no notice was ever given by Mapleton of a meeting in which the issue of removing the Property's TDR-R ***14** overlay zoning would be considered. The removal of the Property's TDR-R overlay zoning was never explicitly discussed or voted on by the City Council. Rather the trial court wrongly inferred the Property's TDR-R overlay zoning was removed by a change to the Property's base zoning.

The trial court further held under Mapleton City Code the Property could not have TDR-R overlay zoning when the base zoning was changed from A-2 to PRC-4. However, Mapleton City Code expressly also permits property with PRC base zoning to have a TDR-R overlay zoning status.

The trial court held Mapleton could remove the Property's TDR-R overlay zoning using Mapleton's general ordinance procedure rather than complying with the notice and other requirements in the Utah Code. Utah Code requires Mapleton to give specific notice when addressing zoning changes. Such notice was never given.

Further, the trial court held LDIII did not succeed to the vested development rights Mapleton granted to the Property when Mapleton received approximately 76 acres of land in return for development rights. The trial court also concluded it could, as a matter of law, interpret ambiguous terms of the Development Agreement. It made a determination the Development Agreement does not run with the land, even though there is plain language in the Development Agreement stating it runs with the land and the rights granted to the Property are vested.

The trial court also held LDIII is time barred from asserting the Property retained its TDR-R zoning overlay. It held LDIII had at most one year to contest the adequacy of the ***15** notice of the meeting in which the Property's undiscussed TDR-R zoning overlay status was removed, which the trial court found occurred in 2006. However, Utah Code requires that notice of a proposed zoning change actually be given, not implied. The trial court ignored that no notice was ever given of a meeting to consider removing the Property's TDR-R overlay zoning. Further, the removal of the Property's TDR-R zoning overlay status was never explicitly considered or decided on by the City Council.

ARGUMENT

I. The Summary Judgment Standard.

Summary judgment is permissible only if there is no genuine dispute as to any material fact, and if the moving party is entitled to judgment as a matter of law based on the undisputed facts. All facts and all reasonable inferences drawn from the facts must be construed in the light most favorable to a party opposing summary judgment. *See Mind & Motion Utah Investments, LLC v. Celtic Bank Corp.,* 2016 UT 6, ¶ 15, 367 P.3d 994.

"A party should not be deprived of the privilege of having … an adjudication of his claims unless it appears that even upon the facts claimed by him he could not establish a basis for recovery. Moreover, when there is doubt about the matter, it should be resolved in favor of permitting the party to go to trial." *Rees v. Albertson's, Inc.*, 587 P.2d 130, 133 (Utah 1978) (citations omitted).

The Utah Supreme Court stated, "[e]ven absent a complete conflict as to certain facts, a dispute of the understanding, intention, and consequences of those facts may defeat summary judgment." *USA Power, LLC v. PacifiCorp*, 2010 UT 31, ¶ 32, 235 P.3d 749 ***16** (citations omitted). It added "the trial court must recognize that a party's claim that there are no issues of fact relates to that party's theory of the case and should not be construed as support for the adversary's argument or motion." *Id.* The court further explained:

In some cases, the parties may agree on the objective statement of the facts, but may fundamentally disagree on the reasonable inferences to be made from those facts. In such instances, if we were to hold that the nonmoving party must present a specific fact to controvert a statement of fact by the moving party, we would diminish the important role reasonable inferences play in a district court's decision to grant summary judgment. Even if the moving party's objective statement of the facts are agreed upon, reasonable inferences made from those undisputed facts can indeed create a genuine issue of material fact. That the objective facts are undisputed does not mean that no genuine issues remain as to those facts.

Id. at ¶ 33.

Examples of the lower court weighing evidence and making inferences against the non-moving party are discussed in each section below.

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II. The Trial Court Erred in Concluding LDIII Is Time Barred from Asserting the Property's Vested Development Rights.

The trial court found LDIII is time-barred from asserting the Property continuously has been zoned within the TDR Overlay Zone, and approved as a TDR receiving site since 2003. The trial court incorrectly found the Property's TDR-R overlay zoning was removed by the City Council in 2006 when the City Council changed the Property's base zoning from A-2 to PRC-4. The trial court wrongly found LDIII was required to contest any removal of the Property's TDR-R overlay zoning within thirty days from when the action was taken, or at best within one year.

***17** There is no evidence Mapleton *provided* any notice of an intent to remove the Property's TDR-R overlay zoning. Other than the change to the Property's base zoning designation, there is no evidence of any intent by Mapleton or The Preserve to remove or repeal the Property's TDR-R overlay zoning, for which Mapleton received 76 acres of land. It is impossible for a statute of limitations to begin running when Mapleton failed to comply with Utah Code notice requirements, and in fact gave no notice of an intent to remove the Property's TDR-R overlay zoning at all.

The trial court found Utah Code § 10-9a-209 required LDIII to challenge the lack of notice within 30 days from the time of the meeting or from the time the action was taken. R.581. The trial court failed to recognize Mapleton's failure to give *any* notice of a proposed change to the Property's TDR-R overlay zoning. Utah Code § 10-9a-209 limits challenges only for the adequacy of notice *actually given*. The statute twice states notice must be given. *Id.* Because Mapleton failed to give the required notice, the time limitation to challenge the notice is inapplicable.

Further, the thirty-day bar cited to by the trial court and found in Utah Code § 10-9a-801 (5) does not apply unless "the municipality has complied with Section 10-9a-205." Mapleton failed to comply with the requirements for a zoning change found in Utah Code § 10-9a-205 when it allegedly removed the Property's TDR-R overlay zoning in 2006 by changing the base zoning designation.

Even if the thirty-day bar applies, Utah's appellate courts have recognized the period to appeal does not begin to run until the aggrieved party receives actual notice of the land use ***18** regulation or decision in question. *See, Republic Outdoor Advertising, LC v. Dept. of Transp.*, 2011 UT App 198, ¶27, 258 P.3d 619 (holding that the initial administrative appeal period begins to run upon receipt of actual or constructive notice); *Fox v. Park City*, 2008 UT 85, ¶¶ 21 & 30, 200 P.3d 182.

There is no evidence Mapleton ever gave notice of an intent to remove the Property's TDR-R overlay zoning status. There is also no evidence that prior to filing this action, LDIII received actual knowledge the Property's TDR-R overlay zoning was removed. There is no evidence the City Council or The Preserve intended to remove the TDR-R overlay zoning. There are only inferences made by the trial court.

The trial court held LDIII's claim for higher density was untimely. But the trial court ignored that no notice was ever provided. If no notice was provided, no time period began running. The trial court's holding that when the Property's base zoning designation was changed from A-2 to PRC-4, it lost its TDR-R overlay zoning is not supported by the law or the facts. A property eligible for TDR-R overlay zoning becomes entitled with such zoning by "apply [ing] for and receiv[ing] approval to have the property placed in the TDR overlay zone pursuant to rezoning procedures set forth in [Title 18 of the City Code]." MCC § 18-76-070.B.

When zoning approval is granted to a particular property, "[t]he property owner shall be eligible to transfer development rights to the property in accordance with the requirements of [Chapter 18.76 of Mapleton City Code]." MCC § 18-76-070.B.2. An approved TDR receiving site is eligible to be developed at a density that does not "exceed the density ***19** limitations established by the General Plan" but may increase the density to "double of what the underlying zone designation would allow." MCC § 18-76-070.B.3.

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Once property has been rezoned with TDR-R overlay zoning status, the entitlements to the property cannot be revoked, removed or extinguished, and such status certainly cannot be revoked, removed or extinguished without notice and without compliance with notice and substantive requirements for rezoning under Utah Code.

The undisputed facts demonstrate Mapleton never gave notice it intended to remove the Property's TDR-R overlay zoning.[2] Mapleton's failure to give any notice regarding a change to the Property's TDR-R overlay zoning renders any purported change to the Property's TDR-R overlay zoning illegal and ineffective. Therefore, the trial court's grant of summary judgment to Mapleton should be reversed.

A. The Trial Court Erred in Concluding Mapleton's Zoning Ordinances Preclude the Application of a TDR Overlay Zone to a PRC Base Zone.

In finding LDIII's efforts to claim the higher density were untimely, the trial court misinterpreted the applicable statutes it relied upon to decide untimeliness. The trial court made a clear error of law when it decided "[a]n A-2 designation allowed for the use of TDRs to increase the density of development, whereas the PRC-4 designation would not." R.579. Contrary to the trial court's holding, Mapleton City Code states the opposite. MCC § ***20** 18.76.040.B expressly provides "the A-2, … [and] planned residential community (PRC) … zones" are eligible to be TDR "receiving areas." MCC § 18.76.070.A expressly and unambiguously provides "Transferable development right receiving sites" are permitted in "the **A-2**, RA-1, **PRC**, PRD, PD, SDP, R-2-B and R-3 Zone designations…" (emphasis added).

MCC § 18.82.070.B provides, "[a] density bonus shall only be permitted exclusively with the use of TDRs. TDRs may be used to increase the overall density. The maximum density shall be no more than double of the established density in the original General Plan designation." The Property's base density after being rezoned to PRC-4 is 92 units. Therefore, with TDRs, the density could be increased to "no more than double" 92 units. There is no evidence in the record regarding the General Plan density designation, but clearly it would allow the 136 units density Mapleton granted the Property when it received Upper Open Space. When the Property's base zoning was changed from A-2 to PRC in December 2005, the TDR-R overlay zoning and TDR receiving site eligibility was not addressed nor affected. Therefore, the trial court's conclusion is contrary to the plain language of Mapleton Code and summary judgment should be reversed.

Once the trial court wrongly determined the Property could not retain its TDR-R overlay zoning while subject to a PRC base zoning, it erred in concluding the change of the Property's base zoning from A-2 to PRC-4 resulted in the removal and the forfeiture of its TDR-R overlay zoning.

***21** Inferences from Mapleton's actions and Mapleton's arguments, which should have been made in LDIII's favor, contradict the trial court's ruling. In June 2017, the City Council adopted the recommendation of the planning commission, and voted to *recognize* the Property as a TDR receiving site. R.513. Mapleton's action acknowledges a PRC-4 zone is eligible to be a TDR receiving site.

Mapleton argued, "[i]n June 2017, Mapleton City took steps to increase the development density on the subject property .... The first step was to newly apply the TDR-R overlay zone."[3] R.566. In other words, Mapleton admits TDR-R overlay zoning status may be applied to a property with PRC-4 base zoning. Therefore, the trial court's decision that a PRC-4 zone could not be a TDR-R zone is contrary to Mapleton's ordinances, and the opposite of the City Council's understanding.

Mapleton concedes the Property was eligible for TDR-R overlay zone in June 2017 without any change to the PRC-4 base zoning. The 2006 change to the Property's base zoning cannot, or at least in light of the standard of review applicable on summary judgment, should not, be construed to support an inference that the "overlay" zoning was revoked by silence and implication. Therefore, the trial court's grant of summary judgment should be reversed.

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III. The Property's Vested Rights Survive Foreclosure.

*22 A. LDIII Succeeded to All Rights, Titles and Interests of the Prior Owners When it Obtained Title to the Property Through Foreclosure.

The trial court held LDIII did not succeed to any of the rights vested in The Property. LDIII obtained its legal and equitable title to the Property pursuant to foreclosure. As a matter of law, it succeeded to, and acquired all rights, titles and privileges owned by the prior land owners. Utah law specifically provides:

The trustee's deed shall operate to convey to the purchaser, without right of redemption, the trustee's title and all right, title, interest, and claim of the trustor and the trustor's successors in interest and of all persons claiming by, through, or under them, in and to the property sold, including all right, title, interest, and claim in and to the property acquired by the trustor or the trustor's successors in interest subsequent to the execution of the trust deed, which trustee's deed shall be considered effective and relate back to the time of the sale.

Utah Code § 57-1-28(3); *c.f. Am. Interstate Mortgage Corp. v. Edwards*, 2002 UT App 16, ¶ 27; 41 P.3d 1142 (holding that the buyer of real property at a Sheriff's Sale succeeds to the title held by its predecessor and all rights that accompany that title). LDIII succeeded to all the development rights vested in the Property.

Likewise, the Trust Deed itself expressly conveyed the Property, "[t]ogether with all buildings, fixtures, and improvements thereon, and all water rights, rights of way, easements, rents, issues, profits, income, tenements, hereditaments, privileges and appurtenances thereon belonging, now or hereafter used or enjoyed with said property, or any part thereof ...." R.88. This broad assignment language is not susceptible to the interpretation that The Preserve intended to carve out, or withhold assignment of density rights, its rights under the ***23** Development Agreement, or any other rights that do or may accompany title to the Property. At least a disputed issue of fact exists, which precludes summary judgment.

The trial court mistakenly relied on Utah Code § 57-1-22.5 in concluding LDIII did not succeed to the development rights and density entitlements under the Development Agreement when it acquired title by foreclosure. However, Utah Code § 57-1-22.5 deals with the assignment of a beneficial interest under a trust deed to another party when another party acquires the beneficial rights under the trust deed. The purpose of the statute is to give the public notice when the identity of the beneficiary of a trust deed has changed. It does not govern or dictate what rights pass to a holder of a trust deed or to a successful bidder at a nonjudicial foreclosure sale.

B. The Development Agreement Is Ambiguous Requiring the Interpretation Most Favorable to LDIII. The Trial Court Erred in Concluding the Development Agreement Does Not Run with the Land.

Relying on only one section of the Development Agreement, and ignoring numerous others, the trial court found the Development Agreement did not run with the land, and LDIII was unable to rely on it for increased density. Paragraph 10 of the Development Agreement states, "Owner's rights under this Agreement shall be personal to Owner and shall only run with the land" when approved by the city. R.43.

However, Paragraph 21 of the Development Agreement expressly provides "this Agreement or a memorandum providing public notice of the existence of this Agreement shall be recorded immediately as a covenant running with the Property...." R.47.

***24** Paragraph 19 of the Development Agreement provides, "[t]his Agreement shall be binding on the successors and assigns of Owner." R.45.

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Paragraph 2 of the Development Agreement expressly provides, “the Property shall be the recipient of the density transferred from the Upper Open Space property” and upon conveyance of the Upper Open Space property to Mapleton, “seventy-five (75) density units [shall be] transferred to the remainder of Owner Development Property” R.39.

Paragraph 6 of the Development Agreement provides, once the “transfer of density” occurs, “the Owner has a vested right to develop a maximum of one hundred thirty-six single family residential units on individual lots.” R.41. The Property's density of 136 units to be developed was recognized in the Mapleton staff report. R.105.

A reasonable interpretation of the Development Agreement is the density entitlement and other rights under it run with the land. The Development Agreement includes “seventy-five (75) density units transferred to the remainder of Owner Development Property” from the Upper Open Space will run with the land.

In several paragraphs, the Development Agreement explicitly states it runs with the land. Elsewhere, it states it is assignable only with Mapleton's consent.[4] If these conflict, it creates an ambiguity that precludes summary judgment. The Development Agreement is also ambiguous regarding what constitutes an “Owner's right.” That term is used in Paragraph 10. The Development Agreement acknowledges vested property entitlements that ***25** run with the land, include the “seventy-five (75) density units *transferred* to the remainder of Owner Development Property.” R.39 (Italics added).

Summary judgment requires the trial court to construe all facts and draw all reasonable inferences in favor of LDIII before ruling against it. For purposes of Mapleton's motion for summary judgment, the trial court must adopt the reasonable interpretation of the Development Agreement that favors LDIII, that is, it runs with the land. Rather than interpreting the ambiguous contract terms, the trial court should have taken evidence regarding the intent of the parties. Such contradictions in the Development Agreement precludes summary judgment

The Utah Supreme Court's decision in *Ward v. Intermountain Farmers Association*, 907 P.2d 264 (Utah 1995) is directly on point. In *Ward*, the trial court granted summary judgment adopting one of two reasonable constructions of an ambiguous contract. The Utah Supreme Court reversed and remanded, explaining:

Because the language of the agreement is reasonably susceptible to Ward's contended interpretation, we conclude that it is ambiguous, and any evidence relevant to prove its meaning is admissible. Indeed, exclusion of such evidence would deny the relevance of the parties' intentions and defeat the principle of contract interpretation that the intentions of the parties are controlling.... This is not a case where extrinsic evidence, if believed by the fact finder, would contradict the parties' written agreement. Accordingly, we hold that extrinsic evidence is admissible ....

Id. at 269 (citations omitted).

Likewise, in *WebBank v. American General Annuity Service Corp.*, 2002 UT 88, 54 P. 3d 1139, the Utah Supreme Court reversed a trial court's grant of summary judgment where the contract at issue was ambiguous:

***26** Because the nature and character of the transaction is ambiguous and the intent of the parties unclear, resort to extrinsic evidence is required to determine the intent of the parties .... Such ambiguity may be resolved only by the trier of fact after consideration of parol or extrinsic evidence as to the parties' intentions, that is, a review and evaluation of all the facts and circumstances surrounding the substance of the transaction. Therefore, the trial court erred in granting summary judgment ....

Because the grant of summary judgment was improper due to the existence of a disputed factual issue as to [the parties'] intentions and the nature and character of the transaction, we reverse and remand for trial in order that extrinsic evidence maybe presented as to [the parties'] intentions regarding the nature and character of the transaction.

Id. at ¶¶ 28-29 (citations omitted).

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The *WebBank* court explained "[a]n ambiguity exists in a contract term or provision if it is capable of more than one reasonable interpretation because of uncertain meanings of terms, missing terms, or other facial deficiencies. *Id.* at ¶ 20 (citations omitted). The court added,

Whether an ambiguity exists in a contract is a question of law. When ambiguity exists, the intent of the parties becomes a question of fact. A motion for summary judgment may not be granted if a legal conclusion is reached that an ambiguity exists in the contract and there is a factual issue as to what the parties intended. Therefore, in considering a motion for summary judgment, failure to resolve an ambiguity by determining the parties' intent from parol evidence is error.

Id. at ¶22 (citations omitted).

In *SME Industries, Inc. v. Thompson, Ventulett, Stainback & Assocs., Inc.*, 2001 UT 54, 28 P.3d 669, the Utah Supreme Court reversed the trial court's grant of summary judgment. The court held ambiguities in a contract precluded summary judgment and required reversal,. It stated:

***27** The parties' arguments highlight the ambiguities that should have prevented the trial court from granting summary judgment .... The basic purpose in construing or interpreting a contract … is to determine the intentions of the parties, which are controlling. Accordingly, we have held that a court may consider extrinsic evidence if the meaning of the contractual provision at issue is ambiguous or uncertain. A contract provision is ambiguous if it is capable of more than one reasonable interpretation because of uncertain meanings of terms, missing terms, or other facial deficiencies. When ambiguity exists, the intent of the parties becomes a question of fact. Therefore, in considering a motion for summary judgment, failure to resolve an ambiguity by determining the parties' intent from parol evidence is error.

Here, the parties have presented contrary, tenable interpretations of the language contained in [the contract].... Because the intent of the parties is unclear, extrinsic evidence is necessary to determine the meaning of the [contract] provision, and the trial court erred in granting judgment as a matter of law on this issue.

Id. at ¶¶ 14-15(citations omitted).

The trial court stated:

LD III contends that the Development Agreement states its terms are to run with the land. However, the relevant language of the Development Agreement is not in accord:

Owner's rights under this Agreement shall be personal to Owner and shall only run with the land so long as Owner or a company which is affiliated with it under common ownership and control of Owner shall own and be the Owner of the Property. In the event that Owner intends to sell the Property or any portion thereof to any other party, Owner shall advise the city of such intention. Only upon express prior written approval by the City, shall any rights of Owner with respect to the portion of the Property being sold be deemed transferred to the new owner thereof. City may withhold such approval in the exercise of its reasonable business judgment, based upon conditions that exist at the time of the transfer, the proposed transferee and the history of the development of the Project prior to such time.

***28** R.582. In its summary judgment ruling, the trial court ignored these other directly contradictory paragraphs discussed above (¶¶2, 6, 19, 21). For the trial court to decide as it did, it had to choose to focus on one term and ignore another. This is improper at summary judgment. The trial court failed to consider, or even mention, this language anywhere in its ruling. The trial court's failure to consider the language stating the Development Agreement runs with the land disregards an obvious ambiguity and is error.

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The trial court decided the Development Agreement terms it cited were the only relevant terms. By doing so, it made inferences against LDIII, improperly construed the Development Agreement against LDIII, and misapplied the summary judgment standard.

The trial court was obligated to consider the portions of the Development Agreement that favor LDIII's position and to construe it in LDIII's favor before ruling against it. "The cardinal rule in contract interpretation is to "give effect to the intentions of the parties as they are expressed in the plain language of the [agreement] itself." *New York Ave. LLC v. Harrison*, 2016 UT App 240, ¶ 21, 391 P.3d 268. We examine "the entire [agreement] and all of its parts in relation to each other, giving an objective and reasonable construction to the [agreement] as a whole." *G.G.A., Inc. v. Leventis*, 773 P.2d 841, 845 (Utah Ct. App. 1989). Our goal is to interpret the agreement "so as to harmonize all of its terms and provisions, and all of its terms should be given effect if possible." *Pioneer Builders Co. of Nev. v. K D A Corp.*, 2018 UT App 206, ¶ 13, 437 P.3d 539. Failing to consider each of the Development Agreement's terms and giving weight to one contradictory term over another was error.

***29** Here, there are ambiguities in the Development Agreement and the parties' intent is unclear. Therefore, it was error for the trial court to grant Mapleton summary judgment.

C. Disputed Issues of Fact Exist as to Whether LDIII Succeeded to the Development Rights Regarding Density and Zoning Acknowledged in the Development Agreement.

In granting summary judgment, the trial court improperly held there was "no evidence … the development rights regarding density and zoning outlined in the Development Agreement were assigned to LD III .... [And] there are no indications that the parties to the agreement specifically intended the Development Agreement to survive the foreclosure...." R.584

However, Paragraph 2 of the Development Agreement expressly provides, "the Property shall be the recipient of the density transferred from the Upper Open Space property" and upon conveyance of the Upper Open Space to the City, "seventy-five (75) density units [shall be] transferred to the remainder of Owner Development Property" R.39. Paragraph 6 of the Development Agreement provides, once the "transfer of density" occurs, "the Owner has a vested right to develop a maximum of one hundred thirty-six (136) single family residential units on individual lots." R.41. These are not merely contractual rights, they are vested property rights.

When SLR deeded the Upper Open Space to Mapleton, "seventy-five (75) density units [were] transferred" to the Property and vested in the Property, giving all of its then and future owners "a vested right to develop a maximum of one hundred thirty-six (136) single family residential units on individual lots." R.41. The Property must continue to possess its ***30** vested development rights, otherwise, Mapleton was unjustly enriched when it received the Upper Open Space. Mapleton will have received that land and withdrawn what it gave for it.

There is no evidence the density, zoning, and development rights in the Development Agreement were not assigned to LDIII. Further, there is no evidence the parties to the Development Agreement intended it would not survive a foreclosure. The summary judgment standard of review prohibits the trial court from adopting facts or drawing inferences against LDIII.

Substantial evidence supports the conclusion that when LDIII acquired title by foreclosure it succeeded to all rights in the Property, including the development rights regarding density and zoning that are acknowledged in the Development Agreement. This evidence and the controlling legal authorities are more specifically discussed in **Section III** A. A disputed issue of material fact exists as to whether LDIII succeeded to the density entitlements acknowledged in the Development Agreement. As such, the trial court's ruling is not supported by sufficient evidence and should be reversed.

D. Mapleton was Required to Comply with Utah Zoning Code to Change the Property's Zoning.

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The trial court held Mapleton City Ordinance 2007-18 "which applied the PRC-4 zone and removed the TDR-R overlay to limit density to 92 units, was enacted pursuant to MCC § 1.01.020 ...." R.589. MCC § 1.01.020 is found at the very beginning of Mapleton Code. MCC§ 1.01.20 states, "[t]his code shall be adopted by an ordinance enacted in accordance with the applicable provisions of section 10-3-701 of Utah Code Annotated, as amended, and ***31** shall become effective at the time set forth in the enacting ordinance." This section of Mapleton Code does not relate to zoning changes. It is the language that allowed Mapleton to enact its city code.

Utah Code § 10-3-701, the section referenced in the Mapleton code, states, "[e]xcept as otherwise specifically provided, the governing body of each municipality shall exercise its legislative powers through ordinances." There is no authority or process set forth to allow Mapleton to make zoning changes without complying with the notice and other requirements set forth in Utah Code.

The trial court cited Utah Code § 10-3-702 which states, "[t]he governing body may pass any ordinance to regulate, require, prohibit, govern, control, or supervise any activity, business, conduct or condition authorized by this act or any other provision of law." R.590. This statute does not give Mapleton authority to enact zoning laws outside of the specific process and procedures set forth in Utah Code § 10-9a-502 et sq.

The trial court found "the Utah Municipal Code permits the City Council to modify density of development through the general ordinance procedures rather than the more specific zoning amendments." *Id.* The trial court held Mapleton "chose to adhere to the general procedure for ordinances found in section 1.01.20 of Mapleton City Code." R.590. The trial court did not cite to any decision of any appellate court or any statute to support its holding that Mapleton could change the Property's zoning status without complying with Utah Code § 10-9a-502 et seq.

Utah Code § 10-9a-502 states:
***32** (1) The planning commission shall:

(a) provide notice as required by Subsection 10-9a-205(1)(a) and, if applicable, Subsection 10-9a-205(4);

(b) hold a public hearing on a proposed land use regulation;

(c) if applicable, consider each written objection filed in accordance with Subsection 10-9a-205(4) prior to the public hearing; and

(d) (i) review and recommend to the legislative body a proposed land use regulation that represents the planning commission's recommendation for regulating the use and development of land within all or any part of the area of the municipality; and

(ii) forward to the legislative body all objections filed in accordance with subsection 10-9a-205(4).

(2) (a) The legislative body shall consider each proposed land use regulation that the planning commission recommends to the legislative body

(b) After providing notice as required by Subsection 10-9a-205(1)(b) and holding a public meeting, the legislative body may adopt or reject the land use regulation described in subsection (2)(a):

(i) as proposed by the planning commission; or

(ii) after making any revision the legislative body considers appropriate.

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Utah Code § 10-9a-503 states:
(1) Only a legislative body may amend:

(a) the number, shape, boundaries, area, or general uses of any zoning district;

(b) any regulation of or within the zoning district; or

(c) any other provision of a land use regulation.

(2) A legislative body may not make any amendment authorized by this section unless the legislative body first submits the amendment to the planning commission for the planning commission's recommendation.

(3) A legislative body shall comply with the procedure specified in Section 10-9a-502 in preparing and adopting an amendment to a land use regulation.

Contrary to the trial court's holding, Mapleton could not alter the Property's zoning through the general procedures for ordinances. Utah Code requires Mapleton to strictly comply with notice and other requirements relating to zoning issues. Mapleton could not remove the Property's TDR-R overlay zoning without strictly complying with these requirements. The trial court committed error in finding Mapleton could enact land use ***33** regulation through its general ordinance procedure and therefore its decision granting Mapleton summary judgment should be reversed.

III. There was No Waiver or Agreement to Remove the Property's Vested Density Development Rights.

The trial court found the Property's TDR-R overlay zoning was eliminated on May 17, 2006 when the Property's base zoning was changed. *Id.* The trial court cites the City Council Minutes for the May 17, 2006 meeting to support its ruling. R.587. The trial court cited Utah Code § 10-9a-209, "**[i]f notice is given** under authority of this part is not challenged under Section 10-9a-801 within 30 days after the meeting for which notice is given, the notice is considered adequate and proper." R.581 (emphasis added). In this case, notice was never given.

The undisputed facts show on May 7, 2003 the City Council passed Ordinance No. 2003-13, stating "the TDR-S and TDR-R applications have received favorable recommendations from the Mapleton City Planning Commission" … "portions of parcels 27-034-0001 & 0047, identified in the Plat Map Exhibit 'A', shall be designated as a TDR-R site of 166 acres in the A-2 zone." R.55. The zoning decision to designate the Property as a TDR-R overlay zone demonstrates a TDR-R overlay zone designation is separate and distinct from a base zoning designation. This difference was ignored.

Despite relying on the notice statute, the trial court ignored the lack of notice in 2006 that the City Council was going to consider the removal of the Property's TDR-R overlay zoning status. There was never a City Council meeting in which the elimination of the Property's TDR-R overlay zoning was discussed, considered or decided. As such, there ***34** could never be notice. Mapleton admitted the Property's TDR-R overlay zoning was "impliedly repealed," which admission contradicts the trial court's finding the Property's TDR-R overlay zoning was explicitly removed at the City Council meeting of May 17, 2006. Further, Mapleton claims the Property's TDR-R overlay zoning was changed by "removing the TDR-R designation … from the official zoning map." R.227.

The City Council Minutes from May 17, 2006 do not mention the Property's TDR-R overlay zoning. R.80. The record is devoid of any evidence The Preserve expressly requested the TDR overlay zoning be changed or terminated, or that The Preserve intended to forfeit the Property's TDR-R overlay zoning. There is no mention of removing or repealing the Property's TDR-R overlay zoning in City Council Minutes for May 17, 2006 or in any ordinance or resolution.

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Further, despite the trial court's conclusions, a change in a property's TDR-R overlay zoning is not the same as a change to the base zoning. The trial court made improper inferences in favor of Mapleton in holding the Property's TDR-R overlay zoning was removed by the base zoning change. This conclusion is contradicted by Mapleton's staff report, stating the change from A-2 to PRC base zoning "did not change the allowed density." R.105. The allowed TDR-R density was 136 units under both base zoning designations. The trial court improperly inferred notice of a City Council meeting to consider a change to the Property's base zoning designation was sufficient notice of Mapleton's intent to also change the Property's TDR-R overlay zoning.

***35** Likewise, there is no evidence to support the trial court's finding on summary judgment the vested density rights to develop 136 units which were transferred to the Property in exchange for the Upper Open Space were surrendered, forfeited or taken. There is no evidence Mapleton considered, much less specifically voted, to remove the Property's TDR-R overlay zoning.

The trial court made improper inferences in Mapleton's favor and weighed evidence in finding, "by considering the totality of the circumstances that the right to develop the Property at a higher density was waived." R.587. If the trial court considered the totality of the circumstances in arriving at its decision, it necessarily made inferences and weighed evidence. Weighing evidence and making inferences in favor of Mapleton to arrive at the "totality of the circumstances" is improper on summary judgment. There is nothing in the record explicitly supporting the trial court's finding and conclusion.

There was never any explicit change made to the Property's TDR-R overlay zoning. The trial court could only infer the Property's TDR-R overlay zoning was removed when its base zoning was changed, and The Preserve and Mapleton intended to remove the Property's TDR-R overlay zoning. There is no evidence of the parties' intent at the time the base zoning was changed. The trial court could only make an inference from what occurred. The trial court is not allowed to make such an inference in Mapleton's favor when considering its motion for summary judgment.

On summary judgment, the trial court must draw all reasonable inferences *in favor of*, not against, LDIII in deciding whether The Preserve voluntarily forfeited, and Mapleton ***36** removed, the Property's TDR-R overlay zoning in 2006. Where the record is silent, the absence of evidence should not be construed against LDIII. Therefore, the trial court's grant of summary judgment should be reversed.

Additionally, the undisputed evidence establishes the 2006 modification to the Property's base zoning was contingent, and could be revoked by Mapleton. The May 17, 2006 City Council meeting minutes state, "the application be further reviewed in 5 months on the basis that if the concept plan has not been submitted to the City Council for final approval, consideration will be given to rezoning the land to its original A2 zone designation." R.80. A reasonable inference is The Preserve did not intend to forfeit or remove the Property's TDR-R overlay zoning, and wanted to preserve it in case the Property's base zoning was changed back A-2. The trial court was required to make such an inference in LDIII's favor when considering Mapleton's motion for summary judgment.

The trial court found City Council's approval of TDR-R overlay zoning to the Property in 2017 was a legislative act. R.588. Assuming, as the trial court did, that an action to *apply* the TDR-R overlay zoning to the Property is a legislative act to modify the Property's zoning, an action to *remove* the Property's TDR-R overlay zoning also must also constitute a legislative act. That would necessitate formal notice, not "implied" notice.

Utah Code § 10-9a-602(1) imposes statutory conditions and requirements for any zoning change to a property. Utah law mandates that the planning commission:
(a) prepare and recommend a proposed ordinance to the legislative body that regulates the subdivision of land;

(b) prepare and recommend or consider and recommend a proposed ordinance that amends the regulation of the subdivision of the land in the municipality;

***37** (c) provide notice consistent with Section 10-9a-205; and

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(d) hold a public hearing on the proposed ordinance before making its final recommendation to the legislative body.

Utah Code § 10-9a-602(1).

Mapleton followed this process and satisfied these requirements when it enacted Ordinance 200-13 in 2003, which applied the TDR-R status to the Property and specifically approved the Property's TDR-R overlay zoning. In contrast, the undisputed facts show in 2006 the Planning Commission never made a recommendation with respect to the removal of, or any other change to, the Property's TDR-R overlay zoning. The requirement that Mapleton comply with Utah Code addressing zoning changes to the Property is critical, but was ignored by the trial court.[5] It is unreasonable to believe statutory requirements need only be followed on occasion.

The trial court seems to have held as a matter of law that overlay zoning is modified by "implication" or "inference" whenever a property's base zoning is changed, even if neither the property owner nor the land use authority gives notice, expressly mentions, or actually discusses the overlay zoning. This is incorrect as a matter of law and public policy and is contrary to Utah Code.

***38** There is no evidence to support the trial court's finding the parties intended to remove the Property's TDR-R overlay zoning, or that it actually occurred. Making all reasonable inferences in LDIII's favor, there are disputed issues of material fact regarding whether the Property's TDR-R overlay zoning was removed when it was rezoned PRC-4. Therefore, the trial court's grant of summary judgment should be reversed.

IV. The Voter Referendum Was Invalid.

On June 7, 2017, even though it was unnecessary and redundant, the City Council again designated the Property as a TDR receiving site. Subsequently, opponents of that decision were allowed to present a referendum on the November 2017 ballot which, if passed, would reverse the City Council's decision. The referendum passed. It is Mapleton's position the action it took was reversed and the Property does not possess TDR-R overlay zoning.

However, Mapleton should never have allowed the referendum vote to occur. It was illegal and can have no effect. Utah Code § 20A-7-601 deals with local referenda procedures. Utah Code § 20A-7-601(1) provides that "a person seeking to have **a local law passed by the local legislative body** submitted to a vote of the people ...." (Emphasis added.) It is important this refers to a "local law." Utah Code § 20A-7-101(13) defines a "local law": "(a)'Local law' includes: (i) an ordinance; (ii) a resolution; (iii) a master plan; (iv) a comprehensive zoning regulation adopted by ordinance or resolution; or (v) other legislative action of a local legislative body, (b) **'Local law' does not include an individual property zoning decision."** Utah Code § 20A-7-101(13) (emphasis added).

***39** Mapleton has throughout its pleadings referred to TDR-R overlay as a zoning status. The action by the City Council to apply TDR-R overlay zoning to the Property was an individual property zoning decision. It only applied to the Property. It was not eligible for a referendum, and the 2017 action by the City Council approving TDR-R status for The Property is not affected by the referendum. The referendum is invalid and not binding. Therefore, the Property retains its TDR-R overlay zoning.

The Utah Supreme Court recently decided this question in *Baker v. Carlson*, 2018 UT 59, 437 P.3d 333 (Sup.Ct.). In *Baker*, the Court was tasked with determining whether two different resolutions in Holladay City regarding the development and use of the former Cottonwood Mall were referable. Ultimately, they concluded one (2018-16) was, and the other (2018-17) was not. *Id.* at 334. The decision turned on "[i]f the municipality's decision is 'open-ended' and made without reference to 'fixed criteria,' then the decision may be legislative." *Id.* at 339 (citing *Krejci v. City of Saratoga Springs*, 2013 UT 74, ¶ 34, 322 P.3d 662.) "But if the municipality's decision involves the 'application of existing law to the facts presented by an individual applicant' or is 'limited to the evaluation of specific criteria fixed by law,' then the decision is administrative." *Id.* Unlike here, Resolution

2018-16 concerned whether or not the city should adopt a site master development plan for that location, without regard to any specific entity. *Id.* at 334. Resolution 2018-17, like this case, concerned the amendment of an existing Agreement for the Development of Land, which was an agreement between specific parties. *Id.* Because "[t]he Amended ADL ***40** applie[d] only to the contracting parties and its approval involved the application of law to specific facts Resolution 2018-17 [was] therefore not referable." *Id.* at 342.

In this case, the referendum concerned only whether the increased density would be specifically allowed on The Property. This was a decision that should have been made in accordance with the existing agreement between the parties. Therefore, it was administrative and not legislative. The trial court was in error in determining that it was referable.

CONCLUSION

Pursuant to the foregoing arguments and law, Appellant respectfully requests this Court reverse the summary judgment of the trial court and remand for resolution of the party's claims on the merits.

DATED this 17th day of June, 2019.

NELSON, SNUFFER, DAHLE & POULSEN

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Appendix not available.

Footnotes

1 Utah Code §§10-9a-509.7 and 17-27a-509.7 established TDRs so property that has been designated as TDR-R can receive density from TDR-S property, to allow more density than would otherwise be permitted.

2 Mapleton's planning commission never considered or recommended such an action, and the City Council never considered or voted to adopt removal of the Property's TDR-R overlay zoning status or revocation of its entitlement as a TDR receiving site. Mapleton's planning commission and the City Council did consider and approve an application to change the base zoning from A-2 to PRC. Changing the base zoning, however, did not and could not effect the Property's TDR-R overlay zoning.

3 LDIII disputes, as both a matter of fact and law, the Property's designation as a TDR-R overlay zone was ever changed since 2003. Mapleton's actions in June 2017 did not "newly apply" the TDR-R overlay zoning, but merely recognized what existed since 2003. Mapleton's admission shows the error in the Court's reasoning. Mapleton admitted property subject to the PRC-4 base zoning is eligible for TDR-R overlay zoning status.

4 Here there was no assignment, but LDIII gained ownership through nonjudicial foreclosure, making Paragraph 10 of the Development Agreement inapplicable to this case.

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5 Mapleton argued that there was an "implied repeal" of the Property's TDR-R overlay zoning when the base zoning was changed from A-2 to PRC-4 and that such a repeal was not subject to Utah Code's notice requirements. R.226. Yet Mapleton also argues the application of TDR-R is a legislative act, subject to the Utah Code's notice requirements and therefore eligible for a referendum vote. It cannot be both ways. Either the Property retains its TDR-R overlay zoning because it was never legally removed or the Property has TDR-R overlay zoning because the referendum in 2017 was improper because dealing with TDR overlay zoning is not subject to Utah Code zoning requirements and therefore not a legislative act.

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